

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Genevieve Lamont	Team: Squad #08	CCRB Case #: 201810453	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 11/30/2018 9:25 AM	Location of Incident: 303 E. 111th St; 23rd Precinct stationhouse	18 Mo. SOL 1/14/2021	Precinct: 23		
Date/Time CV Reported Mon, 12/17/2018 12:22 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Mon, 12/17/2018 12:22 PM		
Complainant/Victim	Type	Home Address			
Subject Officer(s)	Shield	TaxID	Command		
1. POM Vincent Pinto	03290	934068	023 PCT		
2. SGT Luis Martinez	01575	937035	023 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POF Kimberley Burgos	03248	953709	023 PCT		
Officer(s)	Allegation	Investigator Recommendation			
A . POM Vincent Pinto	Abuse: At 303 East 111th Street in Manhattan, Police Officer Vincent Pinto threatened to arrest § 87(2)(b)	A . Unfounded			
B . SGT Luis Martinez	Abuse: At the 23rd Precinct stationhouse, Sergeant Luis Martinez did not process § 87(2)(b)'s complaint regarding Police Officer Pinto.	B . Unsubstantiated			

Case Summary

On December 17, 2018, § 87(2)(b) filed this complaint in-person at the CCRB.

On November 30, 2018, at approximately 9:25 a.m., § 87(2)(b) was sitting inside his car at 303 East 111th Street in Manhattan, waiting for alternative parking to begin. PO Vincent Pinto of the 23rd Precinct then pulled in front of his car, boxing him in. He approached § 87(2)(b) and asked for his license and registration. § 87(2)(b) asked why he needed his information. PO Pinto again asked for his license and registration and allegedly told him that if he did not provide it, he would be arrested (**Allegation A: Abuse; Unfounded**). PO Pinto then issued § 87(2)(b) two summonses for license plate violations [BR 01].

§ 87(2)(b) went immediately to the 23rd Precinct to file a complaint against PO Pinto. When he arrived, he was told that he could not make a complaint at the stationhouse (**Allegation B: Abuse; Unsubstantiated**). PO Kimberly Burgos of the 23rd Precinct wrote down the different methods to file a complaint with the Civilian Complaint Review Board on a piece of paper and gave it to § 87(2)(b) [BR 02].

§ 87(2)(b) provided cellphone footage that he took of the first incident [BR 03 and 04, respectively]. Body-camera footage was received from the Legal Bureau [BR 05]. Neither video shows any FADO allegations. Body-camera footage discussed below was unable to be embedded in this closing report due to the size of the video.

Allegation A – Abuse of Authority: At 303 East 111th Street in Manhattan, Police Officer Vincent Pinto threatened to arrest § 87(2)(b)

It is undisputed that on November 30, 2018, at approximately 9:25 a.m., PO Pinto stopped § 87(2)(b) and issued him two summonses for covering his front and back license plates. § 87(2)(g)

On December 17, 2018, § 87(2)(b) was interviewed at the CCRB [BR 06]. § 87(2)(b) stated that PO Pinto approached his car and asked for his license and registration. § 87(2)(b) asked him why he needed his license and registration. PO Pinto asked § 87(2)(b) for his information two or three more times, and each time § 87(2)(b) asked why he needed it. After the second or third time, PO Pinto told him, “If you don’t give me your license and registration, I’m going to arrest you.” § 87(2)(b) asked, “Arrest me for what?” He then gave PO Pinto his information, as he did not want to escalate the situation. During this interaction, PO Pinto kept his hand on his gun and informed § 87(2)(b) that he was being recorded on his body camera.

§ 87(2)(b) began filming on his phone when PO Pinto was checking his license. PO Pinto issued § 87(2)(b) two summonses for license plate violations, telling § 87(2)(b) that a towel was covering his license plate and that his front license plate was damaged. § 87(2)(b) informed PO Pinto that he had been working on his car, and that was why the towel was there. He stated that both of his license plates were visible at the time. After he was issued the two summonses, § 87(2)(b) informed PO Pinto that he was going to file a complaint against him. § 87(2)(b) recorded PO Pinto’s name and shield number on his phone. PO Pinto asked if he needed the address, to which § 87(2)(b) responded he knew where the 23rd Precinct was and drove off.

PO Pinto was interviewed at the CCRB on January 30, 2019 [BR 07]. PO Pinto stated that he first noticed that § 87(2)(b)’s back license plate was completely covered with a towel.

He pulled in front of § 87(2)(b)'s car and saw that his front license plate was bent inwards and he could not read the first three letters. He found the condition of § 87(2)(b)'s license plates suspicious and approached him. He asked § 87(2)(b) why his back-license plate was covered, who told him it was because he was working on his car. PO Pinto informed § 87(2)(b) that he was stopping him because he could not read his license plates. He also informed § 87(2)(b) that he was recording him on his body-camera. PO Pinto issued § 87(2)(b) two summonses for front and rear license plate violations. PO Pinto did not remember threatening to arrest § 87(2)(b) for refusing to provide his license and registration, but stated that in the situation that he did refuse, he could have arrested him.

Body-camera footage [BR 5], showed that PO Pinto did not threaten to arrest § 87(2)(b) during their encounter. The footage was equipped with audio and captured the entire incident.

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **Unfounded**.

Allegation B – Abuse of Authority: At the 23rd Precinct stationhouse, Sergeant Luis Martinez did not process § 87(2)(b)'s complaint regarding Police Officer Pinto.

It is undisputed that on November 30, 2018, § 87(2)(b) went to the 23rd Precinct to file a complaint against PO Pinto. It is also undisputed that neither PO Burgos nor Sgt. Martinez prepared a report for § 87(2)(b).

§ 87(2)(b) went to the 23rd Precinct directly after his encounter with PO Pinto, and arrived there at approximately 9:50 a.m. He approached an unidentified black male officer at the desk and informed him he wanted to file a complaint. The officer called over PO Burgos, who told him to “go downtown and file a complaint” and that they did not take complaints at the stationhouse. She then wrote down the contact information for the CCRB and gave it to § 87(2)(b). § 87(2)(b) was at the stationhouse for approximately five minutes.

On January 31, 2019, PO Burgos was interviewed at the CCRB [BR 08]. PO Burgos was assigned as property clerk that day. She recalled § 87(2)(b) shouting loudly about wanting to file a complaint. § 87(2)(b) told her that he wanted to file a report, but did not elaborate for what. PO Burgos informed Sgt. Martinez that § 87(2)(b) wanted to file a complaint. She then went to retrieve the civilian complaint form but did not find any in the drawer where they are kept. She told Sgt. Martinez about this, and asked if she should write down the CCRB's information, which Sgt. Martinez then directed her to do. She informed § 87(2)(b) that they did not have the complaint form and wrote down the different ways to make a complaint on a piece of paper. She gave it to § 87(2)(b) who thanked her and left the stationhouse. PO Burgos confirmed that the piece of paper § 87(2)(b) provided during his interview was what she gave him at the stationhouse. At no point did she tell § 87(2)(b) that the precinct did not take civilian complaints against officers.

Sgt. Martinez was interviewed at the CCRB on February 8, 2019 [BR 09]. Sgt. Martinez was working as desk sergeant when PO Burgos informed him that someone wanted to file a complaint. He spoke briefly with § 87(2)(b) but did not remember the details of the conversation. He then went to answer a phone call at the desk, and PO Burgos informed him that there were no civilian complaint forms. He told her to write down the contact information for the CCRB. He was in the process of seeing where else he could take the complaint, when PO Burgos informed him that § 87(2)(b) had left. He stated that PO Burgos was in the process of getting

his information, but that he left before she could. Sgt. Martinez assumed responsibility of ensuring that the complaint was properly handled, as the Desk Sergeant becomes responsible for generating the complaint once notified of it, which Sgt. Martinez was by PO Burgos.

According to Patrol Guide Section 207-31, there is no explicit procedure if no civilian complaint form is available. However, it does state that if a complainant does not want to immediately make a complaint at the stationhouse in-person, the desk officer/supervisor will be advised and a Command Log entry will immediately be made and shall include the name of complainant, if provided, physical description, e.g. sex, race, age, and any other pertinent information. In addition, the complainant will be provided with the number of the CCRB's Intake Unit [BR 10].

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **Unsubstantiated**.

Civilian and Officer CCRB Histories

- This the first CCRB complaint to which § 87(2)(b) has been a party [BR 11].
- PO Pinto has been a member of service for 15 years and has been subject to six previous CCRB complaints and 16 allegations, none of which were substantiated. § 87(2)(g)
- Sgt. Martinez has been a member of service for 14 years. This is the first CCRB complaint in which he has been a subject officer.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- On February 12, 2019, a FOIL request was submitted to the New York City Office of the Comptroller and will be added to the case file upon receipt [BR 12].
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____

	Signature	Print Title & Name	Date
Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date